Amendment of section 49.

110. In section 49 of the Central Goods and Services Tax Act,—

(*a*) in sub-section (2), the words, figures and letter "or section 43A" shall be omitted;
(*b*) in sub-section (4), after the words "subject to such conditions", the words "and restrictions" shall be inserted;
(*c*) for sub-section (10), the following sub-section shall be substituted, namely:—

"(10) A registered person may, on the common portal, transfer any amount of tax, interest, penalty, fee or any other amount available in the electronic cash ledger under this Act, to the electronic cash ledger for,--

(*a*) integrated tax, central tax, State tax, Union territory tax or cess; or
(*b*) integrated tax or central tax of a distinct person as specified in sub-section (4) or, as the case may be, sub-section (5) of section 25,

in such form and manner and subject to such conditions and restrictions as may be prescribed and such transfer shall be deemed to be a refund from the electronic cash ledger under this Act:

Provided that no such transfer under clause (*b*) shall be allowed if the said registered person has any unpaid liability in his electronic liability register. ";

(*d*) after sub-section (11), the following sub-section shall be inserted, namely:—

"(12) Notwithstanding anything contained in this Act, the Government may, on the recommendations of the Council, subject to such conditions and restrictions, specify such maximum proportion of output tax liability under this Act or under the Integrated Goods and Services Tax Act, 2017 (13 of 2017) which may be discharged through the electronic credit ledger by a registered person or a class of registered persons, as may be prescribed.".

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT